

****April 24, 2025****

****Sanction for Violation of GDPR****

The National Authority for the Supervision of Personal Data Processing completed, in April 2025, an investigation into the operator Dante International SA and found a violation of the provisions of Article 12 paragraph (1) in relation to Articles 17 and 19 of Regulation (EU) 2016/679. As such, the operator was fined in the amount of 49,770 lei (equivalent to 10,000 EURO). The investigation was initiated following a complaint regarding a possible violation of the provisions of Regulation (EU) 2016/679. Thus, a client complained that the operator processed their personal data, namely email addresses associated with the client account created on the operator's online platform, without their consent.

During the investigation, it was found that, although the operator confirmed to the complainant through several responses that the email addresses associated with their client account had been deleted following their requests, the complainant continued to receive an evaluative opinion/feedback message at those addresses. At the same time, it was found that certain collaborators of the operator had the ability to view/use the complainant's email address. It was also found that the operator did not properly manage the requests sent by the complainant for the repeated deletion of the email addresses and did not provide clear, transparent, and intelligible information in the responses sent to the complainant regarding the continued use of those email addresses. As such, it was established that the provisions of Article 12 paragraph (1) were violated in relation to the provisions of Articles 17 and 19 of Regulation (EU) 2016/679.

At the same time, the following corrective measures were imposed on the operator:

1. To send a written response to the complainant's requests, in accordance with Article 17 of the GDPR, which complies with the transparency, clarity, and intelligibility conditions provided by Article 12 of the GDPR;
2. To ensure compliance with the GDPR of personal data processing operations by adopting the necessary technical and organizational measures, including proper training of the designated personnel for this purpose, so that the operator is capable of receiving, analyzing, correctly resolving, and responding to all requests through which data subjects exercise their rights, within the deadlines and according to the conditions provided by Articles 12-23 of the GDPR, including regarding the conditions related to the transparency, clarity, and intelligibility of the information and communications that the operator transmits to data subjects following the exercise of their rights;
3. The corrective measure to ensure compliance with the GDPR of personal data processing operations by adopting the necessary technical and organizational measures, including proper training of the designated personnel for this purpose, so that, in the case of accepting requests for deletion or rectification of personal data from accounts opened on its online platform, these operations become effective immediately ("without unjustified delays") and are notified to the recipients, in accordance with Articles 16, 17, and 19 of the GDPR, taking into account and respecting the principles established by Article 5 of the GDPR, specifically that provided by Article 5 paragraph (1) letter d) of the GDPR.

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